

## # INDIAN ANTI-CORRUPTION LAW — RAG KNOWLEDGE BASE

### ## Project: Lawyer Corruption Cases Identification and Result Solution

**Document version:** 1.0 | **Prepared:** 06 October 2026

**Purpose:** Single source file for a Retrieval-Augmented Generation (RAG) question-answering system.

**Language:** English (simple legal English, chunk-friendly).

### **IMPORTANT NOTES FOR USERS AND DEVELOPERS**

1. This is an educational knowledge base, not legal advice. Always confirm the exact wording against the official bare Act ([indiacode.nic.in](http://indiacode.nic.in)) before relying on it in a real case.
2. Items marked **[VERIFY]** are points where the exact clause number, wording or citation should be checked against the bare Act / law report. Everything else is stated with high confidence.
3. From **1 July 2024**, the IPC, CrPC and Evidence Act were replaced by the **Bharatiya Nyaya Sanhita 2023 (BNS)**, **Bharatiya Nagarik Suraksha Sanhita 2023 (BNSS)** and **Bharatiya Sakshya Adhiniyam 2023 (BSA)**. Cases whose offence/FIR pre-dates 1 July 2024 are generally still governed by the old codes. Both are mapped in Part 20.
4. Latest-status flag: the Supreme Court gave a **split verdict on Section 17A in January 2026** (see Part 9). A larger bench decision was awaited. Check for updates.

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### # HOW THIS DOCUMENT IS ORGANISED (RAG CHUNKING GUIDE)

- Each **PART** is a topic. Each **[ID]** is a self-contained chunk (recommended chunk = one **[ID]** block).
- Every chunk begins with a **Keywords** line to improve retrieval.
- Part 21 is a ready-made **Q&A bank**. Part 22 is a **glossary**. Part 23 is a **quick punishment table**.

- Suggested splitter: split on `###` headings, chunk size ~600–900 tokens, overlap ~100 tokens. Store the `[ID]` and PART title as metadata.

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## ## PART 1 — OVERVIEW OF THE ANTI-CORRUPTION LEGAL FRAMEWORK

### [P1-01] Main laws that deal with corruption in India

\*\*Keywords:\*\* anti-corruption laws India, framework, PC Act, Lokpal, CVC, BNS, PMLA

| Law | Role |

|---|---|

| Prevention of Corruption Act, 1988 (PC Act) | Main substantive law: bribery, criminal misconduct, procedure for investigation, sanction and trial |

| Prevention of Corruption (Amendment) Act, 2018 | Major overhaul effective 26 July 2018: bribe-giving criminalised, commercial organisations covered, Section 17A added |

| Lokpal and Lokayuktas Act, 2013 | Independent ombudsman bodies to inquire into corruption allegations against public servants |

| Central Vigilance Commission Act, 2003 | Statutory CVC: superintendence over CBI in PC Act matters and over vigilance in Central Government bodies |

| Delhi Special Police Establishment Act, 1946 | Legal basis of the CBI |

| Criminal Law Amendment Ordinance, 1944 | Attachment of property procured by corruption (applied by Section 18A of PC Act) |

| Prevention of Money Laundering Act, 2002 | PC Act offences are scheduled offences; ED can attach proceeds of crime |

| Bharatiya Nyaya Sanhita, 2023 (formerly IPC) | General offences (conspiracy, abetment, cheating, forgery, breach of trust) used alongside PC Act |

| Bharatiya Nagarik Suraksha Sanhita, 2023 (formerly CrPC) | Criminal procedure: FIR, investigation, charge sheet, trial, appeal, bail |

| Advocates Act, 1961 + Bar Council of India Rules | Professional discipline of advocates (important for lawyer-corruption cases) |

| Contempt of Courts Act, 1971 | Interference with administration of justice |

### [P1-02] Why corruption involving lawyers is analysed differently

**Keywords:** lawyer corruption, advocate, public servant, private person, middleman

An advocate in private practice is **not** automatically a "public servant" under the PC Act. Liability of a lawyer therefore usually arises in one of these ways:

1. Lawyer as **bribe giver** or **middleman** (Sections 8, 7A, 12 of PC Act).
2. Lawyer who **is** a public servant on some other ground (for example government counsel/public prosecutor paid by government, court-appointed commissioner, receiver, liquidator, arbitrator) — Section 2(c) of PC Act. **[VERIFY]** for each category with case law.
3. Lawyer as **co-conspirator or abettor** with a public servant/judge/court staff (Section 12 PC Act; BNS conspiracy and abetment).
4. **Professional misconduct** under Section 35 of the Advocates Act, 1961, independently of any criminal case.

See Part 19 for scenario-by-scenario analysis.

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## PART 2 — PREVENTION OF CORRUPTION ACT, 1988: STRUCTURE

### [P2-01] Overview of the PC Act, 1988

**Keywords:** Prevention of Corruption Act 1988, structure, chapters, sections list

The PC Act, 1988 received assent on 9 September 1988 and replaced the Prevention of Corruption Act, 1947 and parts of the Criminal Law Amendment Act, 1952. It applies to the whole of India and to Indian citizens outside India (Section 1).

Principal provisions (current numbering after the 2018 amendment):

| Section | Subject |

| --- | --- |

| 1 | Short title, extent |

| 2 | Definitions (public duty, public servant, undue advantage) |

| 3 | Power to appoint Special Judges |

| 4 | Cases triable by Special Judges (including time limit for trial) |

| 5 | Procedure and powers of Special Judge |

| 6 | Power to try summarily / try offences jointly \*\*[VERIFY exact heading]\*\* |

| 7 | Public servant taking undue advantage in relation to official act |

| 7A | Taking undue advantage to influence a public servant by corrupt/illegal means or personal influence |

| 8 | Giving or promising undue advantage to a public servant |

| 9 | Offence by commercial organisation |

| 10 | Person in charge of commercial organisation |

| 11 | Public servant obtaining valuable thing without consideration from person concerned in proceedings |

| 12 | Punishment for abetment |

| 13 | Criminal misconduct by public servant |

| 14 | Punishment for habitual offender |

| 15 | Attempt (omitted/merged after 2018 amendment) \*\*[VERIFY]\*\* |

- | 16 | Matters to be taken into consideration for fixing fine |
- | 17 | Persons authorised to investigate |
- | 17A | Prior approval for enquiry/inquiry/investigation of decisions in official functions (added 2018) |
- | 18 | Power to inspect bankers' books |
- | 18A | Attachment and confiscation of property (added 2018) |
- | 19 | Previous sanction necessary for prosecution |
- | 20 | Presumption where public servant accepts undue advantage |
- | 21 | Accused person to be a competent witness |
- | 22 | Modification of certain CrPC provisions |
- | 23 | Particulars in charge (omitted/obsolete) **\*\*[VERIFY]\*\*** |
- | 24 | (Omitted in 2018) earlier gave a bribe-giver immunity for statements |
- | 25 | Military, naval and air force laws not affected |
- | 26 | Special Judges appointed under earlier law to continue |
- | 27 | Appeal and revision (High Court powers) |
- | 28 | Act in addition to and not in derogation of any other law |
- | 29–31 | Consequential/repeal and savings provisions |

### ### [P2-02] Objective and approach of the Act

**\*\*Keywords:\*\*** object of PC Act, purpose, legislative intent

The Act is a special law intended to make anti-corruption law more effective by widening the definition of "public servant", creating a dedicated class of Special Judges, speeding trials, and providing presumptions against public servants who accept gratification. Courts interpret it purposively but strictly on proof: guilt must still be proved beyond reasonable doubt, and **\*\*demand and acceptance\*\*** are the core facts (see Part 12).

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## ## PART 3 — PREVENTION OF CORRUPTION (AMENDMENT) ACT, 2018

### ### [P3-01] Date and summary of the 2018 amendment

**Keywords:** 2018 amendment, 26 July 2018, changes, bribe giver, commercial organisation, 17A

The Prevention of Corruption (Amendment) Act, 2018 came into force on **26 July 2018**. Main changes:

1. **"Undue advantage"** replaced older terms such as "gratification other than legal remuneration" as the central concept (Section 2(d)).
2. **Section 7 recast**: now covers obtaining/accepting/attempting to obtain an undue advantage by a public servant for improper performance of duty; minimum punishment raised to 3 years, maximum to 7 years.
3. **Section 7A (new)**: covers taking an undue advantage to influence a public servant by corrupt or illegal means or personal influence — applicable to **private persons / middlemen**.
4. **Section 8 (new)**: **bribe-giving itself is an offence** (up to 7 years or fine or both) with a narrow exception where the person was **compelled** and reports to law enforcement **within 7 days**, or where the person gave the advantage after informing law enforcement to assist a trap.
5. **Section 9 (new)**: **commercial organisations** are liable if a person associated with them bribes a public servant; defence of "adequate procedures".
6. **Section 10 (new)**: persons in charge of the organisation who consented/connived are punishable (3–7 years).
7. **Section 11** retained for gifts/benefits without adequate consideration from persons connected with official business (6 months to 5 years).
8. **Section 12**: abetment of offences under the Act punishable with 3–7 years.
9. **Section 13 recast**: "criminal misconduct" narrowed to (a) dishonest misappropriation of entrusted property and (b) intentional illicit enrichment (disproportionate assets). Punishment 4–10 years.
10. **Section 14**: enhanced punishment for habitual offenders (5–10 years). **[VERIFY clause wording]**

11. **Section 17A (new)**: prior approval requirement for investigation into decisions/recommendations made in official functions (not required for on-the-spot arrest for accepting undue advantage).
12. **Section 18A (new)**: attachment and confiscation of property through the Criminal Law Amendment Ordinance, 1944 procedure.
13. **Section 19**: tightened rules around sanction, including timelines (3 months + 1 month) and extension of sanction requirement to former public servants for acts committed while in office.
14. **Section 4**: trial to be concluded ordinarily within **2 years**, extendable by 6 months at a time up to a maximum of **4 years**, with written reasons.
15. **Section 24 omitted**: earlier immunity for statements by a bribe-giver removed (replaced by Section 8 proviso protections).

### ### [P3-02] Practical effect on bribe givers

**Keywords:** bribe giver liability after 2018, compulsion, seven days, report to police

Before 2018 a bribe giver was usually charged under Section 12 (abetment) and was protected from prosecution for their testimony by old Section 24. After 2018, the giver is directly prosecutable under Section 8. The statutory safe harbours are: (i) compelled to pay **and** reports to law enforcement within **7 days**, or (ii) pays/promises after informing law enforcement to help investigation (trap).

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## ## PART 4 — KEY DEFINITIONS

### ### [P4-01] "Public servant" — Section 2(c)

**Keywords:** public servant definition, Section 2(c), judge, arbitrator, court commissioner, university, cooperative society

Section 2(c) lists twelve categories (paraphrased):

1. Any person in the service or pay of the Government, or remunerated by Government by fees or commission for performing any public duty.
2. Any person in the service or pay of a local authority.
3. Any person in the service or pay of a corporation established by or under a Central/State Act, or an authority/body owned, controlled or aided by Government, or a Government company.
4. **\*\*Any Judge\*\***, including any person empowered by law to discharge adjudicatory functions.
5. Any person authorised by a court of justice to perform any duty in connection with the court, including a **\*\*liquidator, receiver or commissioner\*\*** appointed by the court.
6. Any **\*\*arbitrator\*\*** or other person to whom any cause or matter has been referred for decision or report by a court or competent public authority.
7. Any person holding an office by virtue of which he can prepare, publish, maintain or revise an electoral roll or conduct an election.
8. Any person holding an office by virtue of which he is authorised or required to perform any public duty.
9. Any president, secretary, office-bearer or employee of a registered cooperative society engaged in agriculture, industry, trade or banking, receiving or having received financial aid from Government (or a Government corporation/company).
10. Chairman, member or employee of any Service Commission or Board, or member of a selection committee for examinations or selections.
11. Vice-Chancellor, members of governing bodies, professors, readers, lecturers and other teachers/employees of a university; persons connected with conducting university examinations.
12. Any office-bearer or employee of an educational, scientific, social, cultural or other institution that receives or has received financial assistance from Government or a local/public authority.

**\*\*Explanations (substance):\*\*** (1) persons falling in these categories are public servants whether or not appointed by Government; (2) a person who actually holds the position of a public servant is covered irrespective of any legal defect in his right to hold that position.

### [P4-02] "Public duty" — Section 2(b)

**\*\*Keywords:\*\*** public duty meaning, State, public interest

"Public duty" means a duty in the discharge of which the \*\*State, the public or the community at large has an interest.\*\* For this purpose "State" includes a corporation established by or under a Central/Provincial/State Act, or an authority/body owned, controlled or aided by Government, or a Government company.

### [P4-03] "Undue advantage" — Section 2(d)

**Keywords:** undue advantage, gratification, legal remuneration, bribe meaning

"Undue advantage" means **any gratification whatever, other than legal remuneration.**

- **Gratification** is not limited to money or things estimable in money. It can include favours, jobs for relatives, sexual favours, gifts, travel, hospitality, loans on special terms, etc.

- **Legal remuneration** is not limited to what a public servant can lawfully demand; it includes all remuneration which the public servant is permitted to receive by the Government or the organisation he serves. Salary, allowances and permitted fees are legal remuneration. Anything beyond that, taken in connection with an official act, is "undue advantage".

### [P4-04] Do judges and court staff count as public servants?

**Keywords:** judge public servant, court staff, K. Veeraswami, sanction for judge

Yes. Section 2(c)(iv) specifically names judges. In *K. Veeraswami v. Union of India*\* (1991) 3 SCC 655, the Supreme Court held that a Judge of a High Court/Supreme Court is a public servant under the PC Act; the Court also laid down the safeguard that a criminal case against such a judge should not be registered without consulting the Chief Justice of India. Court staff (clerks, bench clerks, process servers, stenographers, court masters) are public servants under Section 2(c)(i)/(viii).

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## PART 5 — OFFENCES UNDER THE ACT

### ### [P5-01] Section 7 — Public servant taking undue advantage

**Keywords:** Section 7, bribe taking, public servant, improper performance, 3 to 7 years

**Who:** A public servant.

**Act:** (a) obtains/accepts/attempts to obtain an undue advantage, intending to perform a public duty **improperly or dishonestly** or to forbear from performing it; or (b) obtains/accepts/attempts to obtain an undue advantage as a **reward** for such improper performance or forbearance; or (c) performs or induces another public servant to perform improperly a public duty in anticipation of, or in consequence of, accepting an undue advantage.

**Punishment:** imprisonment **3 to 7 years** and fine.

**Explanations (substance):** it is immaterial whether the public servant actually performed the duty; and it is immaterial whether the undue advantage is for the public servant himself or for another person; the advantage may be taken directly or through a third party. Performance is "improper" if it breaches a relevant expectation of good faith, impartiality or trust placed in the public servant.

**Sanction:** Section 19 sanction needed. **Section 17A:** not applicable to arrest on the spot while accepting.

**Key proof points:** demand + acceptance + connection with official act (Part 12).

### ### [P5-02] Section 7A — Influencing a public servant by corrupt means or personal influence

**Keywords:** Section 7A, middleman, influence peddling, fixer, lawyer, personal influence

**Who:** **Any person** — not limited to public servants. This is the key section for **middlemen, touts, fixers and lawyers** who claim they can "manage" a public servant or judge.

**Act:** Accepts/obtains/attempts to obtain from another person, for himself or someone else, an undue advantage as a **motive or reward to induce a public servant**, by **corrupt or illegal means** or by exercise of personal influence, to perform a public duty improperly (or forbear) or as a reward for it.

**Punishment:** imprisonment **3 to 7 years** and fine.

**Important:** The offence is complete when the intermediary takes the advantage with that purpose; it does not require that the public servant is actually influenced. Section 19 sanction is **not** required against a private intermediary, because Section 19 protects public servants.

### ### [P5-03] Section 8 — Giving or promising undue advantage to a public servant

**\*\*Keywords:\*\*** Section 8, bribe giver, compelled, seven days, commercial, trap

**\*\*Who:\*\*** Any person who gives or promises to give an undue advantage to another person **\*\*with the intention\*\*** to induce a public servant to perform a public duty improperly or to reward such improper performance (or knowing it would be improper).

**\*\*Punishment:\*\*** imprisonment up to **\*\*7 years\*\***, or fine, or both.

**\*\*Exceptions (provisos):\*\***

1. A person **\*\*compelled\*\*** to give the undue advantage is **\*\*not\*\*** guilty, **\*\*provided\*\*** he reports the matter to a law enforcement authority/investigating agency **\*\*within 7 days\*\*** of giving the advantage.

2. Sub-section (2): a person who, **\*\*after informing law enforcement\*\***, gives or promises an undue advantage to help the authority investigate (e.g., a complainant in a trap case) is not guilty.

**\*\*Lawyer relevance:\*\*** An advocate who pays or arranges payment to a judge, court officer or investigating officer is liable under Section 8, and also under Section 12 if an abettor.

### ### [P5-04] Section 9 — Offence by commercial organisation

**\*\*Keywords:\*\*** Section 9, commercial organisation, adequate procedure, associated person, fine

See Part 7.

### ### [P5-05] Section 10 — Person in charge of commercial organisation

**\*\*Keywords:\*\*** Section 10, director, manager, consent, connivance

See Part 7.

### ### [P5-06] Section 11 — Public servant obtaining valuable thing without consideration

**\*\*Keywords:\*\*** Section 11, gift, inadequate consideration, person concerned in proceeding, judge accepting gift

**\*\*Who:\*\*** A public servant.

**\*\*Act:\*\*** Accepts/obtains/attempts to obtain, for himself or another, any undue advantage **\*\*without consideration, or for a consideration he knows to be inadequate\*\***, from a person he knows to be (or likely to be) concerned in any proceeding or business transacted by him, or connected with his official functions or those of his superior, or from a person interested in or related to such person.

**\*\*Punishment:\*\*** imprisonment **\*\*6 months to 5 years\*\*** and fine.

**\*\*Lawyer relevance:\*\*** A judge/magistrate/public prosecutor taking gifts, discounted services or hospitality from an advocate or litigant who has a matter before them. No "improper performance" has to be proved; the receipt alone with the relationship is the offence.

### ### [P5-07] Section 12 — Abetment

**\*\*Keywords:\*\*** Section 12, abetment, conspiracy, aiding bribe

Whoever **\*\*abets\*\*** any offence under the Act — whether or not the offence is committed because of the abetment — is punishable with imprisonment **\*\*3 to 7 years\*\*** and fine. Abetment includes instigating, conspiring and intentionally aiding (as defined in general criminal law — now BNS Sections 45–49; earlier IPC Sections 107–120).

### ### [P5-08] Section 13 — Criminal misconduct

**\*\*Keywords:\*\*** Section 13, criminal misconduct, misappropriation, disproportionate assets, 4 to 10 years

See Part 8.

### ### [P5-09] Section 14 — Habitual offender

**\*\*Keywords:\*\*** Section 14, habitual, repeat, 5 to 10 years

Persons who **\*\*habitually\*\*** commit offences of bribe-giving or abetment of bribe-giving by commercial organisations, etc., are liable to imprisonment **\*\*5 to 10 years\*\*** and fine. **\*\*[VERIFY exact clauses (offences under Sections 8, 9 and 12) against the bare Act.]\*\***

### ### [P5-10] Section 16 — Fine

**\*\*Keywords:\*\*** Section 16, fine consideration, pecuniary gain

When fixing the fine, the court must take into account the amount or value of any property obtained by the accused through the offence, where it can be assessed.

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## ## PART 6 — BRIBE GIVER VS BRIBE TAKER

### ### [P6-01] Comparison table

**\*\*Keywords:\*\*** bribe giver, bribe taker, difference, Section 7 vs Section 8, punishment

| Aspect | Bribe taker | Bribe giver |
|--------|-------------|-------------|
|--------|-------------|-------------|

|                 |
|-----------------|
| ---   ---   --- |
|-----------------|

|              |                                               |                                                |
|--------------|-----------------------------------------------|------------------------------------------------|
| Main section | 7 (public servant); 7A (private intermediary) | 8 (individual); 9–10 (commercial organisation) |
|--------------|-----------------------------------------------|------------------------------------------------|

|            |                  |                               |
|------------|------------------|-------------------------------|
| Punishment | 3–7 years + fine | up to 7 years or fine or both |
|------------|------------------|-------------------------------|

|              |         |                            |
|--------------|---------|----------------------------|
| Minimum jail | 3 years | None (fine alone possible) |
|--------------|---------|----------------------------|

|                          |                                                   |                                     |
|--------------------------|---------------------------------------------------|-------------------------------------|
| Sanction for prosecution | Section 19 sanction required (for public servant) | Not required (not a public servant) |
|--------------------------|---------------------------------------------------|-------------------------------------|

|                      |                                                                                                           |                |
|----------------------|-----------------------------------------------------------------------------------------------------------|----------------|
| Section 17A approval | Not needed for on-the-spot arrest; otherwise needed only if relatable to official decision/recommendation | Not applicable |
|----------------------|-----------------------------------------------------------------------------------------------------------|----------------|

| Presumption under Section 20 | Applies once acceptance proved | Does not apply to giver |

| Defence | Absence of demand/acceptance; no connection to official act; sanction defects |  
Compulsion + report within 7 days; trap cooperation |

| Status of complainant in trap | — | The complainant who reports under Section 8 safe-harbour is protected |

### [P6-02] Is a bribe-giver an accomplice?

**Keywords:** accomplice, corroboration, trap witness, complainant

Courts have held that the complainant/trap witness in a trap case is **not an accomplice**, because he pays with a view to expose the public servant, though his evidence is treated with care and usually looked at with corroboration (see *State of Bihar v. Basawan Singh*, AIR 1958 SC 500 **[VERIFY]**). A person who pays voluntarily to get an illegal favour is a bribe-giver under Section 8.

### [P6-03] What if the person was forced to pay?

**Keywords:** compelled to pay, extortion, report within seven days

If a person was forced to pay, they should report to the police/ACB/CBI/Lokayukta **within seven days of paying**. Delay beyond seven days removes the statutory protection and exposes the giver to Section 8. Where the person did not yet pay, they should file a complaint so that a trap can be laid.

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## ## PART 7 — COMMERCIAL ORGANISATION CORRUPTION (SECTIONS 9 AND 10)

### [P7-01] Section 9 — Offence by commercial organisation

**Keywords:** commercial organisation, Section 9, associated person, adequate procedures, fine, business advantage

- A commercial organisation commits an offence if **any person associated with it** gives or promises to give an undue advantage to a public servant **intending to obtain or retain business, or an advantage in the conduct of business** for that organisation.
- **Punishment for the organisation:** **fine** (the section does not provide imprisonment for the organisation itself).
- **Defence:** the organisation proves it had **adequate procedures** (anti-bribery compliance programme) in place, in line with guidelines to be prescribed by the Central Government.
- **"Commercial organisation"** includes (a) a body incorporated in India that carries on a business (in or outside India); (b) a body incorporated outside India that carries on business, or part of it, in India; (c) a partnership firm or association of persons formed in India that carries on business; (d) a partnership/association formed outside India that carries on business in India.
- **"Person associated"** means a person who performs services for or on behalf of the organisation, irrespective of the capacity (employee, agent, subsidiary, contractor). Whether he is associated is determined by looking at all relevant circumstances, not only the nature of the relationship.

### ### [P7-02] Section 10 — Persons in charge

**Keywords:** Section 10, director, manager, secretary, officer, connivance, 3 to 7 years

Where an offence under Section 9 is proved to have been committed with the **consent or connivance** of a director, manager, secretary or other officer of the organisation, that person is also guilty and punishable with imprisonment **3 to 7 years** and fine.

### ### [P7-03] Can a law firm be a "commercial organisation"?

**Keywords:** law firm, commercial organisation, profession vs business, untested

This is a **debated and largely untested** question. Section 9 covers bodies/partnerships that "carry on a business". Legal practice is traditionally regarded as a **profession**, not a trade or business, and Bar Council rules restrict advertising and commercial approach. A law firm that structures bribe payments as "business development" would still face individual liability under Sections 8, 7A and 12 and BNS conspiracy. Treat Section 9 application to a law firm as an **open question** unless supported by a specific judgment. **[VERIFY]**

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## ## PART 8 — CRIMINAL MISCONDUCT (SECTION 13)

### ### [P8-01] Section 13 as substituted in 2018

**Keywords:** criminal misconduct, Section 13, misappropriation, illicit enrichment, disproportionate assets, known sources of income

A public servant commits criminal misconduct if he:

- **(a)** dishonestly or fraudulently misappropriates or converts for his own use any property entrusted to him or under his control as a public servant, or allows any other person to do so; or
- **(b)** intentionally enriches himself illicitly during the period of his office.

**Explanation 1:** A person is presumed to have intentionally enriched himself illicitly if he or anyone on his behalf is in possession (or has at any time during his period of office been in possession) of pecuniary resources or property disproportionate to his known sources of income which the public servant cannot satisfactorily account for.

**Explanation 2:** "Known sources of income" means income received from any lawful source.

**Punishment (Section 13(2)):** imprisonment 4 to 10 years and fine.

### ### [P8-02] Disproportionate assets (DA) cases — proof model

**Keywords:** DA case, check period, income vs expenditure, assets, burden of proof, Krishnanand Agnihotri

1. Fix the **check period** (a period during office).
2. Compute total **assets** at start and end of the check period.

3. Compute **known lawful income** (salary, agricultural income, inheritance, gifts, loans, etc.) and **expenditure**.
4. Surplus = assets – (lawful income – expenditure). If unexplained surplus is **disproportionate**, the burden shifts to the accused to **satisfactorily account** for it.
5. The prosecution must prove assets and the source-of-income baseline; the accused must explain. Mere possession by family members counts only if held "on behalf of" the public servant.
6. Investigation must be ordered by an officer **not below Superintendent of Police** (second proviso to Section 17).

Key authorities: \*Krishnanand Agnihotri v. State of M.P.\* (1977) 1 SCC 816; \*D.S.P., Chennai v. K. Inbasagaran\* (2006) 1 SCC 420; \*State of Karnataka v. J. Jayalalithaa\* (2017) (conviction restored in the sequel; proceedings abated against deceased accused). **[VERIFY citations]**

### [P8-03] Section 13 versus Section 7 — difference

**Keywords:** Section 7 vs 13, bribe vs misconduct, trap vs DA case

Section 7 is a **transactional bribery** offence (demand/acceptance linked to an official act). Section 13(1)(b) is a **status/accumulation** offence (illicit enrichment). A public servant caught in a trap is normally charged under Section 7 (and earlier also 13(1)(d)); a DA case is charged under 13(1)(b) read with 13(2).

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## ## PART 9 — INVESTIGATION PROCEDURE

### [P9-01] Section 17 — Who can investigate

**Keywords:** Section 17, who investigates, Inspector, DSP, Superintendent of Police, arrest without warrant

No police officer below the following rank may investigate an offence under the PC Act, or arrest without warrant, without the order of a Metropolitan Magistrate/Magistrate of the first class:

- (a) **Delhi Special Police Establishment (CBI):** Inspector of Police;
- (b) **Metropolitan areas** (Mumbai, Kolkata, Chennai, Ahmedabad and others): Assistant Commissioner of Police;
- (c) **Elsewhere:** Deputy Superintendent of Police or equivalent.

**First proviso:** a police officer not below the rank of **Inspector**, if authorised by the State Government by general or special order, can investigate without a Magistrate's order.

**Second proviso:** A case under **Section 13(1)(b)** (disproportionate assets) can be investigated only on the order of an officer **not below the rank of Superintendent of Police**.

**Agencies:** CBI (central employees/central matters), State ACB/Vigilance (e.g., **Directorate of Vigilance and Anti-Corruption (DVAC), Tamil Nadu**), Lokpal's Inquiry Wing and referred agencies, Lokayukta investigation wings.

### ### [P9-02] Section 17A — Prior approval before enquiry/investigation

**Keywords:** Section 17A, prior approval, official decision, recommendation, three months, Lalita Kumari

Inserted in 2018. No police officer shall conduct any **enquiry, inquiry or investigation** into an offence alleged to have been committed by a public servant under the Act, where the offence is **relatable to any recommendation made or decision taken by that public servant in discharge of official functions or duties**, without **previous approval** of:

- (a) the **Central Government**, for a person employed in connection with the affairs of the Union at the time of the alleged offence;
- (b) the **State Government**, for a person employed in connection with the affairs of the State;
- (c) the **authority competent to remove** him from office at that time, in other cases.

**Exceptions:** No approval is needed for cases involving the **arrest of a person on the spot on the charge of accepting or attempting to accept an undue advantage** for himself or another.

**Timeline:** The authority must convey its decision **within three months**, extendable by **one month** with reasons recorded in writing. The Lokpal Act-related bodies' cases are dealt with separately.

**\*\*What 17A does not cover:\*\*** acts not relatable to official recommendations/decisions (e.g., a clerk demanding money for a routine certificate is generally still treated as an on-the-spot trap case or non-"decision" case — fact-dependent).

### ### [P9-03] Section 17A — constitutional challenge (LATEST STATUS)

**\*\*Keywords:\*\*** Section 17A constitutional validity, split verdict, Nagarathna, Viswanathan, Centre for Public Interest Litigation, larger bench, 2026

- In **\*\*January 2026\*\***, a two-judge Supreme Court bench delivered a **\*\*split verdict\*\*** in *Centre for Public Interest Litigation v. Union of India* on the constitutional validity of Section 17A.
- **\*\*Justice B.V. Nagarathna\*\*** held Section 17A **\*\*unconstitutional\*\***: it violates Article 14 by protecting only a class of public servants, forecloses enquiry at the threshold, and revives protections struck down earlier in *Vineet Narain* (1998) and *Subramanian Swamy v. Director, CBI* (2014) (which struck down Section 6A of the DSPE Act).
- **\*\*Justice K.V. Viswanathan\*\*** held the provision **\*\*constitutionally valid\*\***, warning that striking it down would cause more harm than good and exposing honest officers to frivolous investigations; he read it down so that the approval decision should be made by **\*\*independent bodies such as the Lokpal or Lokayukta\*\*** rather than the executive.
- The matter was referred to a **\*\*larger bench\*\*** by the Chief Justice of India.
- **\*\*Earlier related split verdict:\*\*** *Nara Chandrababu Naidu v. State of Andhra Pradesh* (January 2024) — Justice Aniruddha Bose treated Section 17A as procedural/retrospective safeguard-compatible while Justice Bela Trivedi held it cannot be applied retrospectively to offences before 26 July 2018.
- **\*\*Status as of this document:\*\*** Section 17A remains on the statute book and is applied, but its validity is pending before a larger bench. **\*\*[Check for the latest ruling before relying on it.]\*\***

### ### [P9-04] Preliminary enquiry before FIR

**\*\*Keywords:\*\*** preliminary enquiry, Lalita Kumari, FIR, corruption cases, 7 days

In *Lalita Kumari v. Government of U.P.* (2014) 2 SCC 1 (Constitution Bench), the Supreme Court held that FIR registration is mandatory when information discloses a cognizable offence, but a **\*\*preliminary enquiry is permitted\*\*** in specified categories, including **\*\*corruption cases\*\***, with a time limit generally of about 7 days (later guidance indicates it should be brief). Under BNSS Section 173(3), a

preliminary enquiry within 14 days with officer permission is available for certain offences punishable by 3 to less than 7 years **\*\*[VERIFY applicability to Section 7 etc.]\*\***.

### ### [P9-05] Section 18 — Inspection of bankers' books

**\*\*Keywords:\*\*** Section 18, bank accounts, inspection, Bankers' Books Evidence Act

If a police officer not below the rank of Superintendent of Police has reasonable ground to believe that an offence under the Act has been committed, he can apply to the Magistrate/Special Judge or exercise powers (as per Section 18) to inspect the **\*\*bankers' books\*\*** of the suspect, his relatives or associates; the Bankers' Books Evidence Act, 1891 applies for evidence of such records.

### ### [P9-06] Arrest, bail and cognizability (general scheme)

**\*\*Keywords:\*\*** cognizable, non-bailable, anticipatory bail, bail PC Act

Offences under the PC Act are **\*\*cognizable\*\***, and given their punishment ranges (3–7 years or above) are treated as **\*\*non-bailable\*\***; bail is decided by the Special Judge, then High Court. Anticipatory bail (BNSS Section 482; formerly CrPC 438) can be sought in appropriate cases, subject to the gravity of allegations and the investigative need for custodial interrogation. In trap cases, arrest is usually made at the spot. **\*\*[VERIFY State-specific amendments]\*\***

### ### [P9-07] Limitation

**\*\*Keywords:\*\*** limitation, time bar, delay, criminal

No general limitation period applies to offences punishable with more than 3 years' imprisonment (CrPC Section 468, now BNSS Section 514). Delay can still affect the credibility of evidence and may be raised under the **\*\*right to speedy trial\*\*** (Article 21). The Lokpal Act has its own 7-year limit (Part 16).

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## ## PART 10 — SANCTION FOR PROSECUTION (SECTION 19)

### ### [P10-01] Rule of Section 19(1)

**Keywords:** sanction, Section 19, previous sanction, cognizance, competent authority, former public servant

No court can take **cognizance** of offences under Sections **7, 11 and 13** (and the old Section 15, where applicable) alleged against a public servant **except with the previous sanction** of:

- (a) the **Central Government**, in the case of a person employed in connection with the affairs of the Union and not removable save by or with the sanction of the Central Government (including a person who **was** so employed at the time of the alleged offence — 2018 change);
- (b) the **State Government**, similarly for State affairs;
- (c) **any other authority competent to remove** the public servant from office, in other cases.

**2018 change:** sanction requirement now explicitly covers persons who **were** public servants at the time of the offence but have since **retired or moved**. **[VERIFY exact statutory words]** (Earlier Supreme Court decisions allowed prosecution of a person who had ceased to hold the office without sanction — now superseded by the amended text for PC Act cases.)

### ### [P10-02] Provisos on private complaints and hearing

**Keywords:** private complaint, sanction request, Section 203, opportunity of hearing

- A request for sanction by **a person other than a police officer or an investigating agency officer** can be entertained only if the person has **filed a complaint in a competent court**, and the court has **not dismissed it under Section 203 CrPC (now BNSS Section 226)** and has directed the complainant to obtain sanction. In such cases the sanctioning authority must give the **public servant a hearing** before granting sanction.

### ### [P10-03] Timelines and consultation

**Keywords:** sanction time limit, three months, four months, Attorney General, Advocate General

The sanctioning authority must **endeavour to convey its decision within 3 months**, extendable by **1 month** in writing; where legal consultation with the Attorney General/Advocate General is required, an **additional extension of 1 month** is permitted (maximum about 4 months). In *Subramanian Swamy v. Manmohan Singh* (2012) 3 SCC 64, the Supreme Court emphasised timely decisions on sanction, including a 3-month time limit with 1 month extra for legal consultation, and recognised the right of a private citizen to seek sanction. **[VERIFY]**

### ### [P10-04] Content and validity of a sanction order

**Keywords:** valid sanction, application of mind, material, defects, Mansukhlal Vitthal Das Chauhan, Ashok Aggarwal

- Sanction must be given by the **competent authority** with **application of mind** to the material placed before it; a mechanical or dictated sanction is invalid (*Mansukhlal Vitthal Das Chauhan v. State of Gujarat* (1997) 7 SCC 622; *CBI v. Ashok Kumar Aggarwal* (2014) 14 SCC 295). **[VERIFY]**

- A court cannot direct an authority to grant sanction.

- Section 19(3): a finding, sentence or order by a Special Judge **cannot be reversed or altered** on appeal/revision on the ground of absence of, or error/omission/irregularity in, sanction, unless the court finds that a **failure of justice** has actually been occasioned. Section 19(4): the court considers whether the objection could and should have been raised at an earlier stage.

- Sanction is **not** required for Section 7A, 8, 9, 10, 12 offences against private persons (lawyers, businessmen, middlemen), nor for prosecution of a bribe-giver.

### ### [P10-05] Sanction for judges and constitutional officers

**Keywords:** sanction judge, Chief Justice of India, Veeraswami, MP sanction, Narasimha Rao

- For **High Court / Supreme Court judges:** no FIR without consultation with the **Chief Justice of India** (*K. Veeraswami*); sanction/clearance is ultimately by the President on the CJI's advice.

- For **Members of Parliament/MLAs:** they are public servants (*P.V. Narasimha Rao v. State (CBI/SPE)* (1998) 4 SCC 626 for MPs); sanction authority is the Speaker/Chairman (MPs) or Speaker (MLAs). **[VERIFY details]**

- For **judicial magistrates and district judges** the State Government and the High Court's administrative authority are involved, depending on service rules.

### [P10-06] Sanction under the new procedure code

**Keywords:** BNSS 218, CrPC 197, official duty protection

BNSS **Section 218** (formerly CrPC Section 197) separately protects judges and public servants from prosecution for acts done in discharge of official duty. For PC Act offences such as Section 7, the Supreme Court has held that acceptance of a bribe is not an official duty, so Section 19 PC Act (not general CrPC/BNSS sanction) is the relevant provision.

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## ## PART 11 — SPECIAL JUDGES AND TRIAL

### [P11-01] Appointment of Special Judges — Section 3

**Keywords:** Special Judge, Section 3, appointment, qualification

The Central or State Government may by notification appoint as many **Special Judges** as needed to try offences under the PC Act and conspiracies, attempts and abetments in relation to them. A Special Judge must be or have been a **Sessions Judge, Additional Sessions Judge or Assistant Sessions Judge** (under CrPC).

### [P11-02] Exclusive jurisdiction — Section 4

**Keywords:** Section 4, exclusive trial, day-to-day, two years, four years, speedy

- Offences under the PC Act are triable **only by Special Judges** (Section 4(1)).

- A Special Judge can also try other offences (e.g., IPC/BNS conspiracy, cheating, forgery) arising from the same facts in the same trial.

- Trial is to be held **on a day-to-day basis** as far as practicable and to be concluded **within 2 years**; where not concluded, written reasons must be recorded and the period may be extended by **6 months at a time**, with an **overall cap of 4 years**. (2018 amendment — a directory/target provision in practice.)

### ### [P11-03] Procedure — Section 5

**Keywords:** Section 5, cognizance without committal, warrant case procedure, pardon

- A Special Judge **takes cognizance directly**, without the case being committed by a Magistrate.
- The Special Judge follows the **procedure for trial of warrant cases by Magistrates** under the CrPC/BNSS (Section 5(1)).
- The Special Judge may tender a **pardon** to a person supposed to be involved, to obtain evidence (Section 5(2)), with the CrPC pardon provisions applying (CrPC 307; BNSS equivalent).
- The Special Judge is deemed a **Court of Session** for the purposes of CrPC/BNSS provisions (e.g., bail, appeals) and the Public Prosecutor appointed for the Special Court conducts the prosecution.
- In *R.S. Nayak v. A.R. Antulay* (1984) 2 SCC 183, the Court held that a Special Judge can take cognizance on a private complaint without committal. **[VERIFY]**

### ### [P11-04] Stages of trial before the Special Judge

**Keywords:** trial stages, charge, framing of charge, examination, defence, judgment

1. Receipt of charge sheet/complaint and sanction order.
2. **Cognizance** and issue of process.
3. **Supply of documents** to the accused.
4. **Discharge application / hearing on charge** (BNSS 250; CrPC 227) and **framing of charge** (BNSS 251; CrPC 228).
5. Plea of the accused.
6. **Prosecution evidence** (examination-in-chief, cross-examination).
7. **Statement of the accused** (BNSS 351; CrPC 313).

8. **Defence evidence**, if any (the accused can be a competent witness — Section 21 PC Act).

9. **Final arguments**.

10. **Judgment**: conviction/acquittal; hearing on sentence.

### [P11-05] Section 21 and Section 22

**Keywords:** Section 21, accused competent witness, Section 22, modification of CrPC

- **Section 21:** the accused can offer himself as a witness in his own defence; the prosecution cannot comment on failure to testify.

- **Section 22:** modifies certain CrPC provisions for PC Act trials (e.g., regarding revision against interlocutory orders and certain procedural applications). **[VERIFY]**

### [P11-06] Interim orders and revision

**Keywords:** Section 19(3) revision interlocutory, stay of trial

Under the proviso to Section 19(3) (as understood from the 1988 Act), **no stay of proceedings** should be granted by a court on the ground of error in sanction; revisions against **interlocutory orders** are barred (in line with the Act's speedy-trial policy). Courts still exercise inherent powers (BNSS Section 528; CrPC 482) and constitutional writ jurisdiction in exceptional circumstances.

**[VERIFY]**

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## PART 12 — EVIDENCE: DEMAND, ACCEPTANCE, RECOVERY, PRESUMPTION

### [P12-01] The three elements in a Section 7 trap case

**Keywords:** demand, acceptance, recovery, sine qua non, foundational facts

1. **Demand** of illegal gratification — the **sine qua non** of the offence (*State of Maharashtra v. Dnyaneshwar Laxman Rao Wankhede* (2009) 15 SCC 200).
2. **Acceptance/voluntary receipt** — knowing acceptance of the money/advantage, not mere recovery or accidental placement.
3. **Link to official act** — the demand/payment relates to an official favour, forbearance or to a person concerned with official business.

**Mere recovery** of tainted money from the accused, without proof of demand, **cannot sustain conviction** (*B. Jayaraj v. State of A.P.* (2014) 13 SCC 55; *P. Satyanarayana Murthy v. District Inspector of Police* (2015) 10 SCC 152). **[VERIFY citations]**

### [P12-02] Constitution Bench in Neeraj Dutta (2022)

**Keywords:** Neeraj Dutta, hostile complainant, circumstantial evidence, proof of demand, Constitution Bench, 15 December 2022

In *Neeraj Dutta v. State (Government of NCT of Delhi)* (decided 15 December 2022; (2023) 4 SCC 731), a Constitution Bench held (substance):

- Proof of **demand and acceptance** is mandatory for a Section 7/13(1)(d) conviction.
- When the **complainant turns hostile or dies**, or cannot be examined, demand and acceptance can still be proved by **other direct evidence** (e.g., evidence of other witnesses, shadow witness, officials who overheard) or by **circumstantial evidence** (e.g., documents, surrounding circumstances, recovery, conduct).
- The statutory **presumption under Section 20** arises only **after** the foundational facts (demand and acceptance) are established; once presumed, the burden shifts to the accused to rebut on the preponderance-of-probabilities standard (not beyond reasonable doubt).
- Conviction under the PC Act is not automatically defeated because the complainant did not support the prosecution.

### [P12-03] Section 20 — Presumption

**Keywords:** Section 20, presumption, accepted, motive or reward, burden shifts, inadequate consideration

Where in a trial of an offence under **Section 7** (and Section 11 as per the current text **[VERIFY]**) it is proved that the accused **accepted/obtained/agreed to accept/attempted to obtain** an undue advantage, it is **presumed, unless the contrary is proved**, that he did so as a motive or reward under Section 7 (or, for Section 11, without consideration or for inadequate consideration).

- Section 20 does not apply to the **bribe giver** (Section 8) or to a **private person** under Section 7A.

- The court may decline to draw the presumption if the advantage is so trivial that no reasonable inference of corruption can be drawn (Section 20(3)).

- The accused rebuts by showing a **probable explanation** (e.g., loan repayment, genuine gift, money was thrust without knowledge), not by proving beyond reasonable doubt.

### ### [P12-04] Typical documentary and forensic evidence

**Keywords:** trap evidence, phenolphthalein, sodium carbonate, pre-trap memorandum, voice recording, CCTV

- **Complaint** (written/oral) to ACB/CBI; **verification** of demand (often via recorded conversation).

- **Pre-trap memorandum** (mahazar) listing note numbers, with independent official/government witnesses.

- **Treated currency notes** (phenolphthalein powder) and **post-trap hand-wash** test in sodium carbonate solution (pink colour).

- **Post-trap memorandum**, seizure of notes, recovery from person/table/drawer/vehicle.

- **Voice recordings, CCTV, call records, WhatsApp chats** — admissibility requires certificate under Section 63 BSA (formerly Section 65B Evidence Act); voice samples with Section 349 BNSS procedure (formerly CrPC 311A). **[VERIFY]**

- **Shadow witness** who accompanies the complainant and observes the demand/payment.

- **Forensic (FSL) reports** on voice/notes.

- **Departmental records** proving the pending official work.

### [P12-05] Hostile complainant, delay, material contradictions

**Keywords:** hostile witness, contradictions, benefit of doubt, acquittal grounds

Common grounds on which trap-case convictions are reversed: absence of proof of demand; contradictions among trap witnesses; non-examination of independent witnesses; recovery explained by accused as a "loan" or "thrust into pocket"; defective sanction (only if prejudice); delay and unexplained gaps in the pre-trap process. Under *Neeraj Dutta*, a hostile complainant alone is not fatal.

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## ## PART 13 — TRAP CASES: STEP-BY-STEP

### [P13-01] Standard trap procedure

**Keywords:** trap case, steps, ACB, CBI, DVAC, complainant, tainted money

1. **Complaint:** The person who is asked for a bribe approaches ACB/CBI/DVAC/Lokayukta with a written complaint.
2. **Verification of demand:** Officers verify the demand, often by an audio-recorded conversation or a shadow witness.
3. **Registration of case/FIR** (or prior preliminary enquiry) and constitution of the trap team with **two independent official witnesses** (usually government employees).
4. **Pre-trap proceedings:** Complainant's money is smeared with **phenolphthalein powder**, notes' numbers recorded; instructions given to complainant to pay only on a **demand** and give a pre-agreed signal.
5. **The trap:** Complainant meets the accused; the demand is repeated; payment is made; signal given.
6. **Arrest and recovery:** Accused is apprehended; hand-wash test conducted; notes recovered; **post-trap memorandum** drawn.
7. **Search** of office/home if necessary; seizure of records.

8. **Section 17A not required** for the on-the-spot arrest; if the later investigation extends to official decisions, Section 17A approval issues may arise.

9. **Sanction:** After investigation, the agency seeks **Section 19 sanction** from the competent authority.

10. **Charge sheet** filed before the **Special Judge**.

11. **Trial, judgment** and **appeal** (Part 14).

### [P13-02] Defences commonly raised

**Keywords:** defence, no demand, money thrust, loan, false implication

No demand; money thrust into the pocket or on the table; repayment of a loan; enmity of the complainant; official work not pending with the accused (no nexus); invalid sanction; non-compliance with trap procedure.

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## PART 14 — END-TO-END PROCESS: COMPLAINT → INVESTIGATION → PROSECUTION → TRIAL → APPEAL

### [P14-01] Flow chart (text form)

**Keywords:** process flow, complaint, investigation, prosecution, trial, appeal, Supreme Court

...

COMPLAINT

(victim / whistle-blower / source information / audit / Lokpal / CVC reference)

|



VERIFICATION / PRELIMINARY ENQUIRY ← (Lalita Kumari; 17A approval if decision-related)

|



FIR / REGISTRATION OF CASE (cognizable offence)

|



INVESTIGATION (Section 17: authorised officer; Section 13(1)(b): SP-level order)

- Trap / raid / search / seizure
- Bank records (Section 18) · Statements (BNSS 180 / 183) · Forensics
- Attachment of property (Section 18A / BNSS 107 / PMLA)

|



SANCTION FOR PROSECUTION (Section 19) ← competent authority, 3 + 1 month timeline

|



CHARGE SHEET before SPECIAL JUDGE (Sections 3–5)

|



COGNIZANCE → CHARGE FRAMING (discharge hearing)

|



TRIAL (prosecution evidence → accused statement → defence → arguments)

- 2-year target, up to 4 years (Section 4)

|



JUDGMENT (conviction / acquittal) + SENTENCE

|



APPEAL to HIGH COURT (Section 27 PC Act; BNSS 415 / CrPC 374)

- Suspension of sentence / bail pending appeal
- State/CBI appeal against acquittal (with leave as required)

|



SPECIAL LEAVE PETITION to SUPREME COURT (Article 136)

|



CONSEQUENCES: dismissal/removal, pension forfeiture, disqualification, confiscation,

Bar Council discipline (if advocate), PMLA proceedings

...

### [P14-02] Appeals and revision

**Keywords:** appeal, High Court, Section 27, revision, suspension of sentence, acquittal appeal

- **Appeal against conviction:** to the **High Court** (Section 27 gives High Courts the powers of appeal and revision).

- **Appeal against acquittal:** by the State/CBI to the High Court, generally with leave (BNSS provisions).

- **Further remedy:** SLP before the Supreme Court under Article 136.

- **Stay of conviction:** rarely granted; for a public servant, stay of conviction is considered only in exceptional cases because conviction has serious service consequences. Suspension of sentence is considered under BNSS Section 430 (CrPC 389).

- **Revision:** against orders of the Special Judge (subject to the bar on interlocutory revisions).

### ### [P14-03] Consequences of conviction

**\*\*Keywords:\*\*** consequences, dismissal, Article 311, disqualification, Lily Thomas, pension

- **\*\*Service:\*\*** dismissal/removal without further inquiry under the second proviso to Article 311(2)(a) on conviction on a criminal charge; forfeiture of pension (under Pension Rules).
- **\*\*Electoral disqualification:\*\*** Section 8 of the Representation of the People Act, 1951 disqualifies persons convicted of corruption-related offences and sentenced to two or more years; \*Lily Thomas v. Union of India\* (2013) 7 SCC 653 removed the 3-month grace period for sitting legislators. **\*\*[VERIFY]\*\***
- **\*\*Property:\*\*** attachment/confiscation (Part 15).
- **\*\*Advocates:\*\*** Conviction involving moral turpitude can result in removal from the Bar roll (Advocates Act Sections 24A, 35).

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## ## PART 15 — ATTACHMENT AND CONFISCATION

### ### [P15-01] Section 18A PC Act

**\*\*Keywords:\*\*** Section 18A, attachment, confiscation, Criminal Law Amendment Ordinance 1944, proceeds of corruption

Inserted in 2018. The provisions of the **\*\*Criminal Law Amendment Ordinance, 1944\*\*** apply (as far as may be) to **\*\*attachment, administration of attached property, and execution of attachment or confiscation orders\*\*** under the PC Act. For these purposes, references to the "District Judge" in the Ordinance are read as references to the **\*\*Special Judge\*\***.

### ### [P15-02] How attachment works under the 1944 Ordinance (summary)

**\*\*Keywords:\*\*** ad interim attachment, application, Special Judge, notice, confiscation

1. The State/Central Government (investigating agency) applies to the Special Judge (acting for District Judge) to attach money/property procured by the offence (including property held by relatives/associates and transferred without adequate consideration).
2. The court may order **\*\*ad interim attachment\*\*** with notice to the affected persons.
3. Affected persons file objections; the court conducts an inquiry.
4. If satisfied, the court makes a **\*\*final attachment order\*\***; on conviction, the property is **\*\*confiscated\*\*** to the Government (Section 4 of PC Act also fits with the 1944 Ordinance's conviction-related provisions **\*\*[VERIFY exact section numbering of the Ordinance]\*\***).
5. Attached property is administered by an administrator; sale/transfer is barred.

### ### [P15-03] BNSS Section 107

**\*\*Keywords:\*\*** BNSS 107, proceeds of crime, attachment, forfeiture

Under BNSS Section 107, a Court (Magistrate/Sessions) can, on a police officer's application with the Superintendent of Police's approval, order **\*\*attachment or forfeiture of proceeds of crime\*\***. This is an additional general-law tool for corruption proceeds.

### ### [P15-04] PMLA overlap

**\*\*Keywords:\*\*** PMLA, Enforcement Directorate, scheduled offence, proceeds of crime

Offences under the PC Act (including Sections 7, 7A, 8, 9, 10, 11, 12, 13 as listed in the Schedule — **\*\*[VERIFY exact list]\*\***) are **\*\*scheduled offences\*\*** under the **\*\*Prevention of Money Laundering Act, 2002\*\***. The **\*\*Enforcement Directorate (ED)\*\*** can register an ECIR, attach "proceeds of crime", and prosecute for laundering independently, but an ED case depends on the scheduled offence existing (\*Vijay Madanlal Choudhary v. Union of India\* (2022) — upheld key PMLA powers). A lawyer who knowingly assists in concealing or layering bribe money can also be exposed to PMLA Section 3. **\*\*[VERIFY]\*\***

### ### [P15-05] Disproportionate assets and forfeiture

**\*\*Keywords:\*\*** DA forfeiture, properties of relatives, benami

Properties found disproportionate can be attached; transfers to family members as "gifts" can be challenged. The **\*\*Prohibition of Benami Property Transactions Act, 1988\*\*** allows the Income Tax Department to attach benami property purchased with unaccounted income.

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## ## PART 16 — LOKPAL AND LOKAYUKTAS ACT, 2013

### ### [P16-01] Overview

**\*\*Keywords:\*\*** Lokpal, Lokayukta, Act 2013, ombudsman, constitution, composition

The Lokpal and Lokayuktas Act, 2013 (Act 1 of 2014; received assent 1 January 2014) provides for the **\*\*Lokpal\*\*** at the Centre and **\*\*Lokayuktas\*\*** in the States to inquire into allegations of corruption against certain public functionaries. Composition of the Lokpal: a **\*\*Chairperson\*\*** and up to **\*\*8 Members\*\***, of which **\*\*50% are judicial members\*\***, and at least 50% are from SC/ST/OBC/minorities/women categories.

### ### [P16-02] Jurisdiction — Section 14

**\*\*Keywords:\*\*** Section 14 Lokpal, Prime Minister, Ministers, MPs, Group A, B, C, D, foreign contribution

The Lokpal can inquire into allegations against:

- The **\*\*Prime Minister\*\*** (with limits for international relations, security, public order, atomic energy and space; and a full-bench requirement with 2/3 majority for inquiry);
- **\*\*Ministers\*\*** and **\*\*Members of Parliament\*\***;
- **\*\*Group A, B, C and D officials\*\*** of the Central Government (Groups C and D are dealt with through the CVC mechanism for initial inquiry);
- Chairpersons/members/officers/directors of **\*\*boards, corporations, societies, trusts\*\*** established by Act of Parliament or wholly/partly financed by the Central Government;

- Entities that receive **foreign contributions above ₹10 lakh a year** under FCRA.
- **Not covered:** Judges (sitting) of the higher judiciary are outside the Lokpal in the usual course **[VERIFY applicability to specific cases]**.

### ### [P16-03] Procedure — complaint to prosecution

**Keywords:** Lokpal procedure, Section 20, preliminary inquiry, investigation, 90 days, 6 months, prosecution wing

1. **Complaint** to Lokpal (prescribed format, on oath for certain cases).
2. **Preliminary inquiry** by the **Inquiry Wing** (or any agency such as CBI) — generally completed within **90 days** (extendable by 90 days) **[VERIFY]**; the public servant is given an opportunity to comment.
3. Based on the report, the Lokpal may order **investigation** (by CBI/other agency — Lokpal has supervisory powers over agencies in cases referred by it), or close the complaint.
4. The investigation report is normally completed within **6 months** (extendable), and the Lokpal decides whether to file a case before the **Special Court** or recommend departmental action. **[VERIFY]**
5. **Prosecution Wing** of the Lokpal prosecutes. Under Section 23 of the Lokpal Act, sanction for prosecution is given by the Lokpal bench itself, so the ordinary Section 19 PC Act sanction is not separately required in Lokpal-referred cases. **[VERIFY]**
6. **Limitation:** a complaint must be filed within **7 years** of the date of the alleged offence (Section 53).
7. **False/vexatious complaints** attract penalty (Section 46: imprisonment up to 1 year and fine up to ₹1 lakh). **[VERIFY]**
8. **Powers:** search and seizure, attachment of assets (provisional attachment of proceeds of corruption), recommendation of transfer/suspension of the accused during inquiry, and powers of a civil court.
9. **Lokpal and DSPE Act:** The Lokpal Act also amended the DSPE Act (CBI Director selection by a committee of Prime Minister, Chief Justice of India (or nominee) and Leader of Opposition).

### ### [P16-04] Lokayuktas in States — including Tamil Nadu

**\*\*Keywords:\*\*** Lokayukta, State Lokayukta, Tamil Nadu Lok Ayukta Act 2018, Section 63, DVAC

Section 63 required States to establish Lokayuktas within one year of the Act's commencement. **\*\*Tamil Nadu\*\*** enacted the **\*\*Tamil Nadu Lok Ayukta Act, 2018\*\***. The State Lokayukta can inquire into allegations against the **\*\*Chief Minister (subject to safeguards), Ministers, MLAs and State public servants\*\***, using State investigative agencies such as **\*\*DVAC\*\***. Procedures and thresholds vary by State; check the State Act. **\*\*[VERIFY State-specific details]\*\***

### ### [P16-05] Relationship of Lokpal with Section 17A and Section 19

**\*\*Keywords:\*\*** Lokpal and 17A, Lokpal and sanction

- Section 19 PC Act begins with "save as otherwise provided in the Lokpal and Lokayuktas Act, 2013" — Lokpal-driven prosecution follows the Lokpal Act's sanction mechanism.

- In the 2026 split verdict on Section 17A, Justice Viswanathan suggested that approvals should be decided by independent bodies like the Lokpal/Lokayukta (Part 9).

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## ## PART 17 — CENTRAL VIGILANCE COMMISSION ACT, 2003

### ### [P17-01] Overview and composition

**\*\*Keywords:\*\*** CVC Act 2003, Central Vigilance Commission, Commissioner, composition, appointment, term

The **\*\*Central Vigilance Commission Act, 2003\*\*** gave statutory status to the CVC (earlier created by a Government Resolution in 1964 following the Santhanam Committee). The Commission has a **\*\*Central Vigilance Commissioner\*\*** (Chairperson) and **\*\*not more than two Vigilance Commissioners\*\***, appointed by the President on the recommendation of a committee of the **\*\*Prime Minister, the Home Minister and the Leader of the Opposition\*\*** (largest opposition party) in Lok Sabha. Term: **\*\*4 years or age 65\*\***, whichever earlier.

### ### [P17-02] Functions — Section 8

**Keywords:** Section 8 CVC, superintendence over CBI, DSPE, vigilance, advisory, PC Act inquiry

Main functions:

- **Superintendence over the DSPE (CBI)** insofar as it relates to investigation of offences under the PC Act, and power to give directions to DSPE for that purpose;
- Review of the **progress of investigation** and of **applications pending with competent authorities for sanction of prosecution** under the PC Act;
- Inquire or cause inquiry into complaints against **public servants of certain categories** (Group A and equivalent) in the Central Government, on a reference by the Government or on its own;
- **Tender advice** to Central Government, corporations and local authorities on vigilance matters referred to it;
- Exercise **superintendence over vigilance administration** of Ministries/Departments; **Chief Vigilance Officers (CVOs)** work under it.
- **Whistle-blower mechanism:** The **Public Interest Disclosure and Protection of Informers (PIDPI) Resolution, 2004** designates the CVC to receive complaints from whistle-blowers.

### ### [P17-03] Powers — Section 11 and jurisdiction — Section 8/17

**Keywords:** CVC powers, civil court, jurisdiction, Group A, 17 CVC Act

The CVC has all the powers of a **civil court** while conducting inquiries (summoning, document production, evidence on affidavit). It exercises jurisdiction over **public servants** in Central Government service (Group A and equivalent officers, senior officers in Public Sector Banks, PSUs, and organisations), and in matters involving **officers in Group B, C, D** its role is typically advisory. **[VERIFY exact jurisdiction thresholds/Section numbers]**

### ### [P17-04] Relationship with CBI and Lokpal

**Keywords:** CVC and CBI, CVC and Lokpal, tenure extension, ED Director

- CBI **cannot** be directed by CVC in the way of investigation of **specific outcomes**; CVC's superintendence is limited to oversight and directions on the PC Act work. **[VERIFY]**
- The Lokpal's inquiry wing can use the CVC mechanism for **Group C/D** officials' preliminary inquiries.
- CVC Act was amended in **2021** (via Ordinance and Act) to permit extension of the Directors of **CBI/ED** tenures. **[VERIFY details]**

### ### [P17-05] Vigilance clearance and departmental proceedings

**Keywords:** vigilance clearance, first stage advice, second stage advice, CVC advice

CVC gives **first-stage advice** (whether to prosecute/initiate major or minor penalty proceedings) and **second-stage advice** (on the inquiry report). Departmental action and criminal prosecution can run **in parallel**, subject to the principle that departmental proceedings should not be stayed unless there is a very close factual overlap and prejudice to the defence (*\*Capt. M. Paul Anthony v. Bharat Gold Mines Ltd.\** (1999) 3 SCC 679 **[VERIFY]**).

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## ## PART 18 — SUPREME COURT INTERPRETATION TOPICS (CASE LAW DIGEST)

**Note:** Citations are given for orientation. **[VERIFY]** against law reports before citing in a legal document.

### ### [P18-01] Demand and acceptance

**Keywords:** demand sine qua non, Wankhede, Jayaraj, Satyanarayana Murthy, Neeraj Dutta

- *\*State of Maharashtra v. Dnyaneshwar Laxman Rao Wankhede\** (2009) 15 SCC 200 — demand is essential.

- \*B. Jayaraj v. State of A.P.\* (2014) 13 SCC 55 and \*P. Satyanarayana Murthy v. District Inspector of Police\* (2015) 10 SCC 152 — mere recovery inadequate; proof of demand required.
- \*Neeraj Dutta v. State (NCT of Delhi)\* (2022/2023) — Constitution Bench: demand/acceptance can be proved by circumstantial and other evidence when the complainant is hostile or unavailable.

### ### [P18-02] Presumption and burden

**\*\*Keywords:\*\*** presumption, Section 20, rebuttal, preponderance

- \*M. Narsinga Rao v. State of A.P.\* (2001) 1 SCC 691 — statutory presumption is mandatory once acceptance is proved (as under the earlier Section 20). **\*\*[VERIFY]\*\***
- \*Suresh Budharmal Kalani v. State of Maharashtra\* (1998) 7 SCC 337 — presumption is rebuttable; standard is preponderance of probabilities. **\*\*[VERIFY]\*\***

### ### [P18-03] Sanction

**\*\*Keywords:\*\*** sanction case law, Mansukhlal, Ashok Aggarwal, Subramanian Swamy, Antulay

- \*R.S. Nayak v. A.R. Antulay\* (1984) 2 SCC 183 — Special Judge can take cognizance directly; sanction principles.
- \*Mansukhlal Vithaldas Chauhan v. State of Gujarat\* (1997) 7 SCC 622 — sanction must be by competent authority with application of mind.
- \*CBI v. Ashok Kumar Aggarwal\* (2014) 14 SCC 295 — sanction authority must be given full material; prosecution to produce proof.
- \*Subramanian Swamy v. Manmohan Singh\* (2012) 3 SCC 64 — private citizen can seek sanction; time-bound sanction decisions.
- \*Prakash Singh Badal v. State of Punjab\* (2007) 1 SCC 1 — no sanction needed for prosecution of ex-office-holder for acts in a previous office; the 2018 amendment changed the position for PC Act cases. **\*\*[VERIFY]\*\***

### ### [P18-04] Investigation approvals and independence

**\*\*Keywords:\*\*** Vineet Narain, Section 6A DSPE, single directive, Swamy v CBI

- *\*Vineet Narain v. Union of India\** (1998) 1 SCC 226 — struck down the Single Directive requiring executive permission before investigating senior officials; strengthened CBI/CVC independence.
- *\*Subramanian Swamy v. Director, CBI\** (2014) 8 SCC 682 — struck down Section 6A of DSPE Act (prior approval for investigation against Joint Secretary and above) as violative of Article 14.
- *\*Centre for Public Interest Litigation v. Union of India\** (2026) — split verdict on Section 17A (Part 9).
- *\*Lalita Kumari v. Govt. of U.P.\** (2014) 2 SCC 1 — FIR mandatory; preliminary enquiry allowed in corruption cases.

### [P18-05] Who is a public servant

**\*\*Keywords:\*\*** public servant case law, Veeraswami, Narasimha Rao, judges, MPs

- *\*K. Veeraswami v. Union of India\** (1991) 3 SCC 655 — judges are public servants; CJI consultation required before an FIR.
- *\*P.V. Narasimha Rao v. State (CBI/SPE)\** (1998) 4 SCC 626 — Members of Parliament are public servants for the PC Act.
- Several decisions hold that persons performing public duty in aided institutions, banks, cooperative societies and PSUs are covered as per Section 2(c).

### [P18-06] Disproportionate assets

**\*\*Keywords:\*\*** DA, Agnihotri, Inbasagaran, Jayalalithaa

- *\*Krishnanand Agnihotri v. State of M.P.\** (1977) 1 SCC 816 — the disproportion is judged against known sources of income.
- *\*D.S.P., Chennai v. K. Inbasagaran\** (2006) 1 SCC 420 — assets to be computed correctly, particularly the check period and explanation of income.
- *\*State of Karnataka v. J. Jayalalithaa\** (2017) — conviction restored in a DA case (against surviving accused). **\*\*[VERIFY]\*\***

### ### [P18-07] Trap witnesses and complainant

**\*\*Keywords:\*\*** accomplice trap, Basawan Singh, hostile complainant

- *\*State of Bihar v. Basawan Singh\** (1958) — trap witnesses are not accomplices but evidence is closely scrutinised.
- *\*Neeraj Dutta\** — hostile complainant is not fatal if other evidence proves the elements.

### ### [P18-08] Section 12 and middlemen

**\*\*Keywords:\*\*** abetment, middleman, private person, conspiracy

Private persons who act as intermediaries or conspirators with public servants can be prosecuted for abetment/conspiracy with the public servant; after 2018 they can also be charged directly under Section 7A (intermediary) or Section 8 (giver). Sanction is not required for the private person.

### ### [P18-09] Advocates — related case law

**\*\*Keywords:\*\*** advocate misconduct, *Re Sanjiv Datta*, *Dabholkar*, contempt, duty to court

- *\*In re Sanjiv Datta\** (1995) 3 SCC 619 — professional ethics; advocates are officers of the court; misconduct standards.
  - *\*Bar Council of Maharashtra v. M.V. Dabholkar\** (1976) 2 SCC 291 — advocates' professional standards.
  - *\*R.D. Saxena v. Balram Prasad Sharma\** (2000) 7 SCC 264 — advocate's duty to clients and professional misconduct (retention of client documents).
  - *\*In re Vinay Chandra Mishra\** (1995) 2 SCC 584 — advocate held in contempt of court; punishment included suspension of practice.
  - *\*D.P. Chadha v. Triyugi Narain Mishra\** (2001) 2 SCC 221 — professional misconduct includes acts such as not maintaining standards of conduct; negligence in a few instances is not always misconduct.
- \*\*[VERIFY all advocate citations]\*\***

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## ## PART 19 — LAWYER-SPECIFIC CORRUPTION SCENARIOS (PROJECT FOCUS)

### ### [P19-01] Scenario matrix

**\*\*Keywords:\*\*** lawyer corruption scenarios, advocate bribing judge, lawyer middleman, public prosecutor bribe, court staff bribe

| # | Scenario | Likely PC Act provision(s) | Other laws | Sanction needed? |
|---|----------|----------------------------|------------|------------------|
|---|----------|----------------------------|------------|------------------|

|     |     |     |     |     |
|-----|-----|-----|-----|-----|
| --- | --- | --- | --- | --- |
|-----|-----|-----|-----|-----|

|   |                                                            |                                                                                                                                                                                                                                               |
|---|------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1 | Advocate pays a judge/magistrate to get a favourable order | Advocate: Sections 8, 12; Judge: Sections 7, 13 (as applicable)   BNS conspiracy (61), abetment (45–49); Advocates Act Section 35; contempt   Judge: yes (CJI consultation for High Court/Supreme Court; Section 19 for others). Advocate: no |
|---|------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

|   |                                                                                       |                                                                                                                                                                                                                                                         |
|---|---------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 2 | Advocate collects money from client saying "I will pass it to the judge" but keeps it | Section 7A (taking undue advantage to induce a public servant by corrupt means/personal influence) — the offence is committed even if no money reaches the judge   BNS cheating (318) and criminal breach of trust (316); Advocates Act Section 35   No |
|---|---------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

|   |                                                                              |                                                                         |
|---|------------------------------------------------------------------------------|-------------------------------------------------------------------------|
| 3 | Advocate acts as go-between for bribes to court clerk/police/revenue officer | Sections 7A, 8, 12   BNS conspiracy   Public servant: yes; advocate: no |
|---|------------------------------------------------------------------------------|-------------------------------------------------------------------------|

|   |                                                                        |                                                                                                                                     |
|---|------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------|
| 4 | Advocate pays police officer to dilute FIR/chargesheet or avoid arrest | Sections 8, 12; Police officer: Sections 7, 13   BNS 61; abetment   Police officer: Section 19 (17A usually not applicable on trap) |
|---|------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------|

|   |                                                                            |                                                                                                                                                                     |
|---|----------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 5 | Government counsel/public prosecutor takes money to weaken the prosecution | Section 7 (if a public servant); Section 13(1)(a)/(b) if misappropriation/illicit enrichment   BNS; Advocates Act Section 35   Yes, Section 19 for a public servant |
|---|----------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------|

|   |                                                                                             |                                                                                       |
|---|---------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------|
| 6 | Court-appointed receiver/commissioner/liquidator/arbitrator who is an advocate takes bribes | Section 2(c)(v)/(vi): treated as public servant — Section 7, 13   BNS; contempt   Yes |
|---|---------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------|

|   |                                                                            |                                                                                                                           |
|---|----------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------|
| 7 | Advocate gifts an expensive item/travel to a judge who is hearing his case | Advocate: Section 8 (if intended to induce improper performance), 12; Judge: Section 11   Bar Council ethics   Judge: yes |
|---|----------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------|

| 8 | Advocate bribes a court employee to tamper with case records/order copies | Sections 8, 12; employee: 7 | BNS forgery/falsification of records; Section 35 Advocates Act | Employee: yes |

| 9 | Advocate fabricates evidence/bribes witnesses | Not primarily PC Act (unless a public servant is bribed); BNS offences on false evidence, witness tampering | Advocates Act Section 35; contempt | — |

| 10 | Advocate launders bribe money through client account | PMLA exposure; PC Act abetment | BNS; Bar Council | — |

| 11 | Law firm pays bribe to a government department for empanelment | Sections 8, 12; possibly Section 9/10 (debated for law firms — Part 7) | Bar Council rules | Public servant: yes |

| 12 | Advocate extorts money from a litigant by threatening to damage case | Not PC Act (no public servant); BNS extortion/cheating | Advocates Act Section 35 | — |

### ### [P19-02] How to identify a lawyer-corruption case (checklist)

**\*\*Keywords:\*\*** identification checklist, red flags, lawyer corruption indicators, case classification

**\*\*Step 1 — Identify the parties:\*\*** Is any person a **\*\*public servant\*\*** (judge, court staff, police, public prosecutor, government counsel, court-appointed officer)? If yes, PC Act Sections 7, 11, 13 may apply to that person.

**\*\*Step 2 — Identify the lawyer's role:\*\*** giver (Section 8), middleman (Section 7A), abettor (Section 12), or **\*\*public servant in his own right\*\*** (Section 2(c)).

**\*\*Step 3 — Check "undue advantage":\*\*** was there money, gift, favour, service or hospitality beyond legal remuneration? (Section 2(d))

**\*\*Step 4 — Check the link to a public duty/official act:\*\*** is a case, order, FIR, report, hearing date or any official act the subject of the payment?

**\*\*Step 5 — Check demand/acceptance/promise:\*\*** who asked and who received? (Part 12)

**\*\*Step 6 — Check procedure:\*\*** Section 17A approval (if the offence relates to a decision/recommendation), Section 19 sanction (for public servants), CJI consultation (for judges).

**\*\*Step 7 — Parallel remedies:\*\*** Bar Council complaint (Advocates Act Section 35), High Court administrative complaint for judicial/court staff, Contempt, PMLA.

**\*\*Red flags:\*\*** payment "to be handed to the judge/clerk", unexplained fee spikes, cash retainer without receipts, repeated listing before the same bench, hearing dates changed after meetings, brokers

around court premises, promises of "guaranteed result".

### ### [P19-03] Advocates Act, 1961 — professional discipline

**Keywords:** Section 35 Advocates Act, professional misconduct, State Bar Council, disciplinary committee, Bar Council of India, removal from roll, Section 36, Section 37, Section 38

- **Section 35:** If a State Bar Council has reason to believe an advocate on its roll is guilty of **professional or other misconduct**, the matter is referred to its **Disciplinary Committee**.  
Punishments: **reprimand, suspension from practice for a period, or removal of name from the State roll.**
- **Section 36:** Powers regarding advocates on the roll of different State Bar Councils / Bar Council of India's role.
- **Section 37:** Appeal from the State Bar Council's order to the **Bar Council of India**.
- **Section 38:** Further appeal to the **Supreme Court**.
- **Section 24A:** Disqualification from enrolment for conviction of an offence involving **moral turpitude**; the disqualification continues for 2 years after release in case of imprisonment (as per the proviso).
- **Bar Council of India Rules, Part VI, Chapter II (Standards of Professional Conduct and Etiquette):** an advocate must not **influence the decision of a court by any illegal or improper means**, must not have **private communications with a judge relating to a pending case**, and must use best efforts to restrain clients from unfair practices. (This is Section I "Duty to the Court", Rule 4 and neighbouring rules. **[VERIFY rule numbers]**)
- Proceedings are **independent**: criminal acquittal does not automatically end disciplinary proceedings (different standard of proof).
- **Supreme Court** can suspend or restrain an advocate for contempt or for misconduct in the administration of justice (**Vinay Chandra Mishra**).

### ### [P19-04] Other penal provisions often applied with the PC Act (BNS references)

**Keywords:** BNS conspiracy, abetment, cheating, forgery, criminal breach of trust, common intention

| Concept | BNS Section | Former IPC |

|---|---|---|

| Abetment (definition) | 45 | 107 |

| Abetment — punishment where act is committed | 49 | 109 |

| Criminal conspiracy | 61 | 120A/120B |

| Common intention | 3(5) | 34 |

| Criminal breach of trust | 316 | 405–409 |

| Cheating | 318 | 415–420 |

| Forgery | 336 | 463–471 (various) |

**\*\*[VERIFY each BNS number against the official BNS text.]\*\***

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**## PART 20 — OLD CODE TO NEW CODE MAPPING (CrPC → BNSS; IPC → BNS)**

**### [P20-01] Procedure mapping (frequently used in corruption cases)**

**\*\*Keywords:\*\*** CrPC BNSS mapping, 154 to 173, 197 to 218, 438 to 482

| Topic | CrPC (old) | BNSS (new) |

|---|---|---|

| FIR | 154 | 173 |

| Magistrate's order to investigate | 156(3) | 175(3) |

| Statement recorded by Magistrate | 164 | 183 |

| Police report/charge sheet | 173 | 193 |

| Sanction for prosecution of judges/public servants for official acts | 197 | 218 |

| Complaint to Magistrate — cognizance | 200 | 223 |

| Dismissal of complaint | 203 | 226 |

| Discharge | 227 | 250 |

| Framing of charge | 228 | 251 |

| Examination of accused | 313 | 351 |

| Tender of pardon | 306/307 | 343/344 |

| Appeal against conviction | 374 | 415 |

| Appeal against acquittal | 378 | 419 |

| Suspension of sentence pending appeal | 389 | 430 |

| Revision | 397 | 438 |

| Anticipatory bail | 438 | 482 |

| Bail in non-bailable offence | 437/439 | 480/483 |

| Inherent powers of High Court | 482 | 528 |

| Limitation bar | 468 | 514 |

| Attachment of proceeds of crime | (not general) | 107 |

**\*\*Evidence:\*\*** Section 65B Indian Evidence Act (electronic records) → Section 63 Bharatiya Sakshya Adhiniyam. **\*\*[VERIFY mapping numbers against official concordance]\*\***

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**## PART 21 — Q&A BANK (FOR RETRIEVAL TESTING)**

**\*\*Q1. What is the Prevention of Corruption Act, 1988?\*\***

A special law dealing with bribery and corruption by and involving public servants, providing for offences, investigation, sanction, Special Judges and trial. Amended in 2018.

**\*\*Q2. When did the 2018 amendment come into force?\*\***

26 July 2018.

**\*\*Q3. What is "undue advantage"?**

Any gratification whatever other than legal remuneration (Section 2(d)); it is not limited to money.

**\*\*Q4. What is "legal remuneration"?**

Remuneration the public servant is permitted to receive by the Government or the organisation he serves, not limited to what he can lawfully demand.

**\*\*Q5. What is "public duty"?**

A duty in which the State, the public or the community at large has an interest (Section 2(b)).

**\*\*Q6. Is a judge a public servant?**

Yes — Section 2(c)(iv); \*K. Veeraswami\* (1991).

**\*\*Q7. Is a private-practice advocate a public servant?**

Not merely by being an advocate. He may be one if he holds a role listed in Section 2(c) (e.g., court-appointed receiver/commissioner/arbitrator, or government counsel paid by Government — verify per case).

**\*\*Q8. What does Section 7 punish?**

A public servant who obtains/accepts/attempts to obtain an undue advantage for improper performance of public duty or as a reward — 3 to 7 years + fine.

**\*\*Q9. What does Section 7A punish?\*\***

Any person (not just public servants) who takes undue advantage to induce a public servant by corrupt/illegal means or personal influence — 3 to 7 years + fine. Typical for middlemen/fixers.

**\*\*Q10. What does Section 8 punish?\*\***

Giving or promising an undue advantage to a public servant — up to 7 years or fine or both; exceptions for compelled persons who report within 7 days and for those who pay after informing law enforcement.

**\*\*Q11. What is the 7-day rule?\*\***

A person compelled to pay a bribe is protected only if he reports to law enforcement within 7 days of paying.

**\*\*Q12. Section 9?\*\***

Commercial organisation is liable if an associated person bribes a public servant to gain business advantage; punishable with fine; defence of adequate procedures.

**\*\*Q13. Section 10?\*\***

Directors/managers/officers who consented or connived in a Section 9 offence — 3 to 7 years + fine.

**\*\*Q14. Section 11?\*\***

Public servant accepting valuable thing without consideration (or inadequate consideration) from someone concerned in his official business — 6 months to 5 years + fine.

**\*\*Q15. Section 12?\*\***

Abetment of any offence under the Act — 3 to 7 years + fine.

**\*\*Q16. Section 13?\*\***

Criminal misconduct: dishonest misappropriation of entrusted property, or intentional illicit enrichment (disproportionate assets) — 4 to 10 years + fine.

**\*\*Q17. What are "known sources of income"?**

Income received from any lawful source (Section 13, Explanation 2).

**\*\*Q18. Who can investigate PC Act offences?**

Section 17: Inspector (CBI/authorised), ACP (metropolitan areas), DSP (elsewhere); SP-level order for disproportionate assets (13(1)(b)).

**\*\*Q19. What is Section 17A?**

Prior approval of the Government/competent authority before any enquiry or investigation into an offence relating to a public servant's official decision or recommendation; no approval needed for on-the-spot arrest for accepting a bribe. Its validity is the subject of a January 2026 split verdict, referred to a larger bench.

**\*\*Q20. What is Section 19?**

Prior sanction by the competent authority is necessary before a court takes cognizance of offences under Sections 7, 11, 13 against a public servant (including those who have since retired but were public servants at the time of the offence).

**\*\*Q21. Within what time must sanction be decided?**

Endeavour within 3 months, extendable by 1 month; further extension by 1 month if legal consultation is needed.

**\*\*Q22. Is sanction required against a bribe-giver or a middleman?**

No.

**\*\*Q23. Who tries PC Act cases?\*\***

Special Judges appointed under Section 3; trial in 2 years target, 4 years maximum (Section 4).

**\*\*Q24. Which procedure is followed?\*\***

Warrant-case procedure of Magistrates, with the Special Judge taking cognizance directly (Section 5).

**\*\*Q25. What must be proved in a trap case?\*\***

Demand, acceptance and link to an official act; mere recovery is not enough.

**\*\*Q26. What if the complainant turns hostile?\*\***

Under *\*Neeraj Dutta\** (Constitution Bench, 2022) demand and acceptance can still be proved by other evidence or circumstances.

**\*\*Q27. What is Section 20 presumption?\*\***

Once acceptance of an undue advantage is proved in a Section 7 trial, the court presumes it was a motive or reward unless the accused rebuts it.

**\*\*Q28. How is a Disproportionate Assets case proved?\*\***

Check period, assets, known lawful income, expenditure, unexplained surplus; the accused must satisfactorily account.

**\*\*Q29. Where is the appeal from a Special Judge?\*\***

High Court (Section 27); then Supreme Court by SLP.

**\*\*Q30. How are properties attached?\*\***

Section 18A PC Act with the Criminal Law Amendment Ordinance 1944; BNSS 107; PMLA (ED).

**\*\*Q31. What is the Lokpal?\*\***

Independent ombudsman under the Lokpal and Lokayuktas Act, 2013, handling corruption complaints against the PM (with safeguards), Ministers, MPs, and Central public servants.

**\*\*Q32. Time limit to file a complaint with the Lokpal?\*\***

7 years from the date of offence.

**\*\*Q33. Who is the CVC and what does it do?\*\***

Statutory body under the CVC Act 2003 that supervises CBI in PC Act matters and oversees Central vigilance administration; headed by the Central Vigilance Commissioner.

**\*\*Q34. Can a lawyer be prosecuted for saying "I will bribe the judge" and taking money?\*\***

Yes, under Section 7A of the PC Act (and BNS cheating), even if no money was actually given to the judge; plus disciplinary action under Section 35 Advocates Act.

**\*\*Q35. If a lawyer pays a judge, who is guilty?\*\***

Lawyer under Sections 8 and 12; judge under Section 7 (and 13 if applicable); also conspiracy. Judge's prosecution needs prior consultation/sanction as per rules.

**\*\*Q36. Does a criminal acquittal end the lawyer's disciplinary case?\*\***

No; disciplinary proceedings are separate and have a different standard of proof.

**\*\*Q37. Can an advocate be removed from the Bar roll for corruption?\*\***

Yes, under Section 35 Advocates Act (State Bar Council Disciplinary Committee), with appeals to the Bar Council of India and the Supreme Court.

**\*\*Q38. Are commercial organisations liable for bribes by agents?\*\***

Yes under Section 9 unless they prove adequate procedures.

**\*\*Q39. Is bribery by a person abroad covered?\*\***

Section 1 extends the Act to Indian citizens outside India (and foreign bodies carrying on business in India under Section 9).

**\*\*Q40. What changed for retired public servants in 2018?\*\***

Sanction under Section 19 is now explicitly required even for persons who were public servants at the time of the alleged offence but have since left the post.

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## ## PART 22 — GLOSSARY

| Term | Meaning |

|---|---|

| ACB | Anti-Corruption Bureau (State agency) |

| DVAC | Directorate of Vigilance and Anti-Corruption (Tamil Nadu) |

| CBI / DSPE | Central Bureau of Investigation / Delhi Special Police Establishment |

| CVC / CVO | Central Vigilance Commission / Chief Vigilance Officer |

| Cognizance | Court's act of taking notice of an offence to start proceedings |

| Sanction | Prior permission from the competent authority to prosecute a public servant |

| Trap | Operation in which a bribe is paid under supervision to catch a bribe-taker |

| Tainted money | Currency notes treated with phenolphthalein powder |

| Shadow witness | Official witness who accompanies the complainant during the trap |

| Mahazar | Written memorandum of events (pre-trap / post-trap) |

| Check period | Period of public service over which assets are compared in a DA case |

| DA case | Disproportionate assets case, under Section 13(1)(b) |

| Undue advantage | Gratification other than legal remuneration |

| Abetment | Instigating, conspiring or intentionally aiding an offence |

| Hostile witness | A witness who turns against the party that called him |

| Special Judge | A Sessions-level judge appointed to try PC Act cases |

| SLP | Special Leave Petition (Article 136) |

| ECIR | Enforcement Case Information Report (ED equivalent of FIR) |

| PIDPI | Public Interest Disclosure and Protection of Informers Resolution, 2004 |

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## ## PART 23 — QUICK PUNISHMENT TABLE

| Section | Offence                                                                           | Who                      | Imprisonment                     | Fine                 |
|---------|-----------------------------------------------------------------------------------|--------------------------|----------------------------------|----------------------|
| ---     | ---                                                                               | ---                      | ---                              | ---                  |
| 7       | Bribe taking by public servant                                                    | Public servant           | 3–7 years                        | Yes                  |
| 7A      | Influence peddling / middleman                                                    | Any person               | 3–7 years                        | Yes                  |
| 8       | Bribe giving                                                                      | Any person               | Up to 7 years (or fine, or both) | Optional alternative |
| 9       | Bribery by commercial organisation                                                | Organisation             | None specified                   | Fine                 |
| 10      | Persons in charge of organisation                                                 | Director/manager/officer | 3–7 years                        | Yes                  |
| 11      | Gift/benefit without consideration from a person connected with official business | Public servant           | 6 months–5 years                 | Yes                  |
| 12      | Abetment                                                                          | Any person               | 3–7 years                        | Yes                  |
| 13(2)   | Criminal misconduct                                                               | Public servant           | 4–10 years                       | Yes                  |
| 14      | Habitual offender **[VERIFY clauses]**                                            | Any person               | 5–10 years                       | Yes                  |

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## ## PART 24 — SOURCE LIST AND VERIFICATION CHECKLIST

### ### [P24-01] Primary sources to verify against

1. Prevention of Corruption Act, 1988 (as amended up to 2018) — [indiacode.nic.in](http://indiacode.nic.in)
2. Prevention of Corruption (Amendment) Act, 2018 (Act 16 of 2018)
3. Lokpal and Lokayuktas Act, 2013 (Act 1 of 2014) and State Lokayukta Acts (Tamil Nadu Lok Ayukta Act, 2018)
4. Central Vigilance Commission Act, 2003
5. Criminal Law Amendment Ordinance, 1944
6. Bharatiya Nyaya Sanhita, 2023; Bharatiya Nagarik Suraksha Sanhita, 2023; Bharatiya Sakshya Adhiniyam, 2023
7. Advocates Act, 1961; Bar Council of India Rules
8. Supreme Court judgments: Neeraj Dutta (2022), CPIL v. Union of India (Jan 2026, Section 17A split verdict), Subramanian Swamy cases, Vineet Narain, Lalita Kumari, K. Veeraswami, Narasimha Rao

### ### [P24-02] Items to double-check before production use

- Exact wording of Section 14, Section 19 provisos, Section 20 scope, Section 22, and Section 6.
- Exact BNS/BNSS section numbers in Part 19–20.
- Lokpal Act timelines (Section 20), Section 23 and Section 46.
- PMLA Schedule list of PC Act sections.
- Law-report citations in Part 18.
- Current status of the Section 17A reference to the larger bench.
- State-specific amendments (Tamil Nadu).

### [P24-03] Suggested answer style for the RAG chatbot

When answering, the chatbot should: (1) name the Act and section; (2) state who is liable; (3) give the punishment; (4) state whether sanction/approval is needed; (5) mention relevant case law; (6) flag any **[VERIFY]** items; and (7) add a short note that this is general information, not legal advice.

**\*\*END OF DOCUMENT\*\***